

SENATE No. 1318**The Commonwealth of Massachusetts**

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to compliance with the prevailing wage laws of the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/19/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/20/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>2/20/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>2/21/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/24/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>3/2/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/2/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/2/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/3/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>3/18/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/9/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>4/14/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>5/20/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/11/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>6/13/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>7/9/2025</i>

<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>9/18/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>9/24/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>10/2/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>10/2/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>10/9/2025</i>
<i>Lydia Edwards</i>	<i>Third Suffolk</i>	<i>10/9/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>10/29/2025</i>

SENATE No. 1318

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 1318) of Paul R. Feeney, Jason M. Lewis, Sal N. DiDomenico, Michael O. Moore and other members of the Senate for legislation relative to compliance with the prevailing wage laws of the Commonwealth. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2603 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to compliance with the prevailing wage laws of the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 27D of chapter 149 of the General Laws is hereby amended by
2 inserting at the end thereof the following new paragraphs:-

3 For the purposes of this section, the words “construction” and “constructed” shall include
4 offsite fabrication work for any project covered by this section. In such cases, the wage required
5 under this chapter shall be paid for such work and the requirements of Section 27B of chapter
6 149 shall apply to such work, including, but not limited to, weekly submission of certified
7 payroll records and an accompanying statement made under penalties of perjury. Penalties
8 provided under Section 27C of chapter 149 shall apply to such work.

9 The term “offsite fabrication” means products or items that are: (a) produced specifically
10 for a qualified project; (b) considered to be non-standard, custom fabricated items, not generic
11 products readily available for any project; and (c) produced at an offsite location that are part of
12 plumbing, electrical, mechanical and sheet metal systems, including but not limited to piping,
13 fixtures, equipment, wirings, ductwork and other component or parts of such systems. This
14 provision shall not apply to any other work other than work that is part of plumbing, electrical,
15 mechanical, and sheet metal systems. Nothing in the foregoing definition of “offsite fabrication”
16 is intended to restrict application of Section 26 of chapter 149 of the General Laws or to prevent
17 the Commonwealth, or a county, town, authority or district thereof contracting for the
18 construction of public works from giving preference to offsite fabrication performed at an offsite
19 location within a specific geographical area.

20 SECTION 2. Section 27B of chapter 149 of the General Laws is hereby amended by
21 inserting at the end thereof the following new paragraph:

22 For any offsite fabrication work subject to this section, the contractor, subcontractor or
23 public body shall include a section in their weekly certified prevailing wage records that
24 provides: (a) the name and address of the manufacturer, shop or other type of prefabrication
25 facility where the fabrication work was performed; and (b) the name, address, and occupational
26 classifications of each mechanic, apprentice, laborer or other employee employed in the
27 performance of such work, the hours worked by, and wages paid to, each such employee.

28 SECTION 3. This act shall take effect upon its passage.